

SUMMARY STATEMENT
State of Idaho v. Jeremy Brad Bauer
Docket No. 52871

Jeremy Brad Bauer appeals from his judgment of conviction for lewd conduct with a child under the age of sixteen years. Bauer argues that the district court committed fundamental error by failing to provide a specific unanimity jury instruction. He argues that had the jury been instructed that it was required to agree on a specific instance of lewd conduct, he would have been acquitted of Count II, just as he was acquitted of Counts I and III.

On appeal, the State concedes the first two requirements of the fundamental error analysis have been established: (1) Bauer was entitled to a specific unanimity instruction for Count II; and (2) the error is clear from the record. The Court found that the third requirement of the fundamental error doctrine was also met--that Bauer demonstrated that the failure to give an unanimity instruction affected the outcome of his trial. Specifically, the Court could not conclude beyond a reasonable doubt that the jury found all the victim's testimony credible or that the jury agreed on any single event with regard to Count II.

The Court found that fundamental error occurred when the jury was not given a specific unanimity jury instruction for Count II. Thus, the Court vacated Bauer's judgment of conviction, and remanded the case.

***This summary constitutes no part of the opinion of the Court but has been prepared
by court staff for the convenience of the public.***